

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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KEITH HERNANDEZ,

SUMMONS

Index No.:

Plaintiff,

-against-

The Basis of Venue is:
Location of Incident

CITY OF NEW YORK, RUBY FRANCIS, ANGEL
MENDEZ, AND JOHN AND JANE DOE ONE
THROUGH SIX,

Plaintiff designates New York
County as the place of trial.

Defendants.

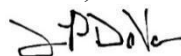
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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 11, 2022

Yours, etc.



DEVERNA LAW
John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 0038
T- (212) 321-0025
F- (212) 321-0024

Defendants' Addresses:

CITY OF NEW YORK, Corporation Counsel; 100 Church Street, NY, NY 10007

RUBY FRANCIS, 357 W 35 ST, NEW YORK, NY 10001

ANGEL MENDEZ; 1 POLICE PLAZA PATH, NEW YORK, NY
10038

JOHN AND JANE DOE ONE THROUGH SIX, 1 POLICE PLAZA PATH, NEW YORK, NY
10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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KEITH HERNANDEZ,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, RUBY FRANCIS, ANGEL
MENDEZ, AND JOHN AND JANE DOE ONE
THROUGH SIX,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff KEITH HERNANDEZ, by their attorneys, DEVERNA LAW, as and for their
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York.
2. Plaintiff's claims arise out of a July 11, 2019 incident, in which defendants acting under color of state law, unlawfully arrested and detained Plaintiff, as well as menaced Plaintiff and used excessive force upon Plaintiff. As a direct and proximate cause, Plaintiff was unlawfully detained within the New York City Police Department within the jurisdictional confines of New York County, New York. Plaintiff was falsely charged with Reckless Driving, Resisting Arrest, and Reckless Endangerment, (Docket # CR-022829-19NY).

Plaintiff was deprived of their liberty for approximately eighteen (18) hours and suffered serious physical and emotional injuries. Plaintiff was prosecuted until their case was dismissed.

3. This action and all associated claims have been timely brought within the applicable statutes of limitations.
4. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.
5. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of cost and attorneys' fees, and such other relief as the Court may deem just and proper.

PARTIES

6. At all relevant times Plaintiff KEITH HERNANDEZ was a resident of the state of New York.
7. The Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York.
8. At all times relevant hereto, Defendant City, acting through the NEW YORK CITY POLICE DEPARTMENT, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, agents, office holders, supervisors, as well as the individually named Defendants herein.

9. In addition, at all times relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
10. At all times relevant hereto, Defendant City, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
11. In addition, at all times relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
12. Defendant ANGEL MENDEZ was, at all times here relevant, a lieutenant employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant ANGEL MENDEZ was, at the time relevant herein, a lieutenant for the NYPD. Defendant ANGEL MENDEZ is sued in their individual and official capacities.
13. Defendant RUBY FRANCIS was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant RUBY FRANCIS was, at the time relevant herein, a police officer in the Patrol Bureau, Manhattan South. Defendant RUBY FRANCIS is sued in their individual and official capacities.

14. At all times relevant Defendants John and Jane Doe One Through Six were police officers, detectives, undercover police officers, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the real names and/or shield number of Defendants John and Jane Doe One Through Six, but such information is believed to be in the possession of the defendants.
15. At all times relevant herein, Defendants John and Jane Doe One Through Six, were acting as agents, servants and employees of the City of New York and the NYPD. Defendants John and Jane Doe One Through Six, are sued in their individual and official capacities.
16. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

FACTUAL CHARGES

17. On July 11, 2019, at approximately 2:00 PM, Plaintiff was lawfully at or near 250 Vesey Street, New York, NY, 10281.
18. At about that date and time, Plaintiff was lawfully present in the area and not obstructing pedestrian or vehicle traffic or otherwise committing any offense or violation of the law.
19. Plaintiff was present in the area working on behalf of MR. SOFTEE as a truck driver.

20. While lawfully sitting in the MR. SOFTEE vehicle, Plaintiff observed an individual who later turned out to be a plain clothes officer, Defendant MENDEZ abruptly and forcefully attempt to open the door of the MR. SOFTEE vehicle.
21. Defendant MENDEZ attempted to enter the vehicle without permission, without a warrant, without exigent circumstances, and without announcing themselves as law enforcement.
22. Due to Defendant MENDEZ' conduct, Plaintiff sustained injuries when the interior handle of the door slammed into Plaintiff's ribs and wrist.
23. Defendant MENDEZ then reached into the MR. SOFTEE vehicle through the open sliding door and struck Plaintiff with his fist.
24. Plaintiff was eventually able to close the vehicle's door to protect himself from further assault by the plainclothes police officer, Defendant MENDEZ.
25. Defendant MENDEZ then punched the window of Plaintiff's vehicle.
26. Defendant MENDEZ identified himself as an undercover police officer and left the scene returning to the MR. SOFTEE vehicle with a firearm drawn.
27. Defendant MENDEZ without provocation or legal justification and against NYPD policy and procedure, pointed his firearm at Plaintiff causing Plaintiff to fear for his life and safety.
28. The startled Plaintiff drove to an area where police officers are known to frequent.
29. After arriving to the area, Plaintiff surrendered.
30. Defendant MENDEZ then forcefully grabbed Plaintiff out of the vehicle by his neck, injuring Plaintiff's neck in the process.
31. Defendant then forcefully handcuffed Plaintiff, injuring Plaintiff's wrist, hands, and thumb in the process.

32. Plaintiff complained about the handcuffs, but they were not adjusted.
33. Plaintiff was escorted into a police vehicle and sent to the 1st Precinct Stationhouse.
34. Plaintiff was detained at the precinct for over eighteen (18) hours
35. Plaintiff was falsely charged with Reckless Driving, Resisting Arrest, and Reckless Endangerment, crimes which the Defendants knew or should have known Plaintiff was not involved in the alleged commission of.
36. Some of the Defendant officers who did not participate in the incident but were otherwise present and observed the violation of Plaintiff's constitutional rights failed to intercede on Plaintiff's behalf.
37. After Plaintiff's arrest, Plaintiff was subjected to a search of the intimate parts of their body causing embarrassment and humiliation.
38. The force used by Defendants caused Plaintiff personal, physical, and emotional injuries, for which they later sought medical treatment, the extent of which are still unknown.
39. During all of the events described, Defendants acted maliciously, willfully, knowingly and with the specific intent to injure Plaintiff and violate their civil rights.
40. Defendants prepared false sworn affidavits and false police reports relating to Plaintiff's arrest.
41. Defendants, including but not limited to police officer ANGEL MENDEZ and RUBY FRANCIS, repeatedly falsified information relating to the facts and circumstances surrounding Plaintiff's arrest.
42. The Defendant police officers falsely stated to the New York County District Attorney's Office that Plaintiff had committed a crime despite knowing that they lacked a legal and a factual basis to allege that Plaintiff committed any crime.

43. The case against Plaintiff (Docket No. CR-022829-19NY) was later resolved in Plaintiff's favor when the matter was dismissed.
44. Plaintiff's injuries, both physical and emotional, were a foreseeable result of Defendant officers unlawful conduct and was the proximate cause of their injuries.
45. At all times relevant hereto, Defendants were involved in the decision to arrest Plaintiff without probable cause or failed to intervene in the actions of their fellow officers when they observed Plaintiff's arrest without probable cause.
46. At all times relevant hereto, Defendants, including ANGEL MENDEZ and RUBY FRANCIS were either involved in the decision to violate Plaintiff's civil rights or failed to intervene in the actions of their fellow officers.
47. The City has been on notice for more than a generation that brutality is widespread and that particular reforms need to be implemented. From reform-minded Commissioner Patrick Murphy to the *Mollen* Commission twenty-five years later, the City has been repeatedly cautioned that a systemic tolerance for brutality flourishes throughout the NYPD. Indeed, years before said violation was perpetrated upon Plaintiff, the *Mollen* Commission report noted, "This tolerance, or willful blindness, extends to supervisors as well.
48. Plaintiff asserts that the Defendants who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar conduct, which is so widespread, pervasive and consistent throughout the NYPD, and the City of New York that the commission of such constitutionally violent behavior has become tantamount to an official policy or custom within the NYPD, and the City of New York or, at the very least, conclusive evidence that the City, NYPD have either tacitly approved of such egregious wrongdoings or that they

have become deliberately indifferent to the Civil Rights of those who may come into contact with police officers.

49. The individually named Defendants herein, as well as other officers serving in the employee of the NYPD, and the City of New York, have blatantly, shamelessly, consistently, and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by the Constitution of the United States, in addition to the laws and Constitution of the State of New York, or without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, The City of New York and their respective policymakers and supervisors.
50. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption with the NYPD, and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to engage in the fabrication or misrepresentation or subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead reward and promote these officers including those who are implicated via some incontrovertible form of evidence.
51. On March 18, 2018, *The New York Times* published an explosive article entitled *Promotions, Not Punishments For Officers Accused of Lying*, written by Joseph Goldstein. Mr. Goldstein shines the light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity of this type

of evidence, in alarmingly small percentage of officers' misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's reluctance or to investigate or disciplines officers who lie and posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusation relating to the officers intentionally false statements, with some allegations coming from federal and state judges.

52. The NYPD has a long-standing and ignominious record of failing to discipline its officers or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article entitled *2495 Reports of Police Bias*. One was deemed valid by the NYPD worried that within the last five years almost 2,500 several individuals have filed formal complaint with the NYPD alleging that an officer acted with biased towards them, would not one single being substantiated by the NYPD such a finding is playing the incredible and obviously the result of a deliberately poor or non-existent investigatory protocol the report commitment to combat the prejudices and the bias is exhibited by many of their officers.
53. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff's arrest without probable cause
54. Upon information and belief, the NYPD, the city of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the

identification of probable cause, reason suspicion or the appropriate amount of force to be used.

55. Defendant's actions, pursuant to plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of plaintiff's civil rights that the tacit approval by the policymakers or supervisors of the NYPD, and the City of New York, as well as their deliberate indifference towards the right of any individuals who may come into contact with dependents, should be inferred, because such makers deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers were supervisors of the NYPD, and City of New York.
56. Upon information and belief further details and facts relating to the unlawful policies customs or patterns and practices of the NYPD, the City of New York and their respective policymakers supervisors police officers or employees, will become known after the completion of Discovery, as such information is presently within the exclusive possession of defendants, the NYPD, and the City of New York
57. Upon information and belief, the personal files, records and disciplinary histories of the officers Defendants will reveal a history of constitutional violations indicative of Defendant City's, knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or poor employment in general, and that the probability of the individually named defendant committed similar violations in the future was extremely high.
58. Upon information and belief said personnel files records and disciplinary histories will conclusively show that the city, and the NYPD were fully aware Defendant passed

constitutional violations, unacceptably high probability for the reoccurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as Law Enforcement Officers, or for employment in general, and not the NYPD, and the City of New York to engage in any preventative or corrective action in the likelihood of recurrence for such violations, which is tantamount to the city of tacit approval of such misconduct or the city's deliberate indifference towards civil rights of those who may interact with employees including Plaintiff

59. As a direct and proximate result of the acts of Defendants, Plaintiff suffered the following injuries and damages: violation of their rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

CAUSE OF ACTION

Unlawful Stop

42 U.S.C. § 1983 Against Individual Defendants

60. The above paragraphs are here incorporated by reference as though fully set forth.
61. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched Plaintiff without reasonable suspicion.
62. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
63. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to emotional and psychological injuries.

64. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION

Unlawful Search Under

42 U.S.C. § 1983 Against Individual Defendants

65. The above paragraphs are here incorporated by reference as though fully set forth.
66. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched Plaintiff without reasonable suspicion.
67. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
68. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
69. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION

False Arrest and False Imprisonment Under

42 U.S.C. § 1983 Against Individual Defendants

70. The above paragraphs are here incorporated by reference as though fully set forth.
71. The Defendants violated the Fourth and Fourteenth Amendments to the U.S.
72. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
73. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

74. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
75. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
76. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
77. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983

78. The above paragraphs are here incorporated by reference as though fully set forth.
79. The defendants, including Defendant's Llano violated the Fourth and Fourteenth Amendments because they used unreasonable force on the plaintiff without consent.
80. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

CAUSE OF ACTION

Failure to Intervene
Under 42 U.S.C. § 1983 Against Individual Defendants

81. The above paragraphs are here incorporated by reference as though fully set forth.
82. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, including but not limited to defendant RUBY FRANCIS, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

83. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

84. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

CAUSE OF ACTION

Malicious Abuse of Process

Under 42 U.S.C. § 1983 Against Individual Defendants

85. The above paragraphs are here incorporated by reference as though fully set forth.

86. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

87. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

88. Defendant intended to inflict substantial harm upon Plaintiff.

89. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

90. Defendant's actions deprived plaintiff of their constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.

91. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

CAUSE OF ACTION

Denial of Right to a Fair Trial Under

42 U.S.C. § 1983 Against Individual Defendants

92. The above paragraphs are here incorporated by reference as though fully set forth.

93. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.
94. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.
95. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.
96. In withholding/creating false evidence against Plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
97. As a result of the foregoing, Plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.
98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
99. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondent superior.

JURY DEMAND

100. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally:

- a) For each and every of the previously stated Cause(s) of Action, a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter; and
- b) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- c) Together with the costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
July 8, 2022



DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038
T- (212) 321-0025
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ATTORNEY'S VERIFICATION

JOHN PAUL DEVERNA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a counsel of the law firm of **DEVERNA LAW**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county where I maintain my office.

DATED: New York, New York
July 8, 2022



DEVERNA LAW
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Index No. :

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF NEW YORK

KEITH HERNANDEZ,

Plaintiff,

-against-

CITY OF NEW YORK, RUBY FRANCIS, ANGEL MENDEZ, AND JOHN AND
JANE DOE ONE THROUGH SIX,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for